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Part Two of the working paper focuses on how we might progress MPA policy reform in New Zealand. Chapter 5 explores key areas of contention which have created road blocks to progress. Chapter 6 identifies areas

where there is more convergence in approach. Chapter 7 then investigates ways to build on these convergent areas to make further progress. Our overall conclusions are summarised in Chapter 8.



Karitāne estuary which is protected by the East Otago Taiāpure

Endnotes

1

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In New Zealand, two types of MPAs are recognised in the MPA Policy: Type 1 (marine reserves established under the Marine Reserves Act 1971) and Type 2 (protection provided under other legislation that meets the MPA Protection Standard).⁷

It is widely acknowledged that “New Zealand has relatively low conservation categorisation, making it one of the most restricted frameworks in the world”.⁸ (Ataria et al, 2018)

The IUCN has long provided an internationally recognised categorisation for protected areas which recognises seven specific types (see spotlight below). Although originally developed for land-based protection, these are increasingly being applied to marine spaces. Some encompass low intensity use if consistent with conservation objectives. When compared to protective mechanisms in New Zealand, there is no clear alignment. This indicates that a rethink of New Zealand’s MPA categories might be warranted, to provide a broader basket of targeted tools.

Spotlight on IUCN protected area categories (our assessment of potential alignment with New Zealand categories shown in italics)

Ia. Strict nature reserve: Strictly protected for biodiversity and also possibly geological features, where human visitation, use and impacts are controlled and limited to ensure protection of the conservation values. (*Marine reserves under the Marine Reserves Act*)

Ib. Wilderness area: Usually large unmodified or slightly modified areas, retaining their natural character and influence, without permanent or significant human habitation, protected and managed to preserve their natural condition. (*Large marine reserves under the Marine Reserves Act and significant natural areas under the Resource Management Act 1991 (RMA)*)

II. National park: Large natural or near-natural areas protecting large-scale ecological processes with characteristic species and ecosystems, which also have environmentally and culturally compatible spiritual, scientific, educational, recreational and visitor opportunities. (*Possibly large marine reserves under the Marine Reserves Act*)

III. Natural monument or feature: Areas set aside to protect a specific natural monument, which can be a landform, seamount, marine

cavern, geological feature such as a cave, or a living feature such as an ancient grove. (*Outstanding natural features under the RMA*)

IV. Habitat/species management area: Areas to protect particular species or habitats, where management reflects this priority. Many will need regular, active interventions to meet the needs of particular species or habitats, but this is not a requirement of the category. (*Marine mammal sanctuaries under the Marine Mammals Protection Act 1978, habitats of significance to fisheries management, benthic protection areas, and spatial gear exclusions to protect marine mammals/seabirds under the Fisheries Act 1996, wildlife refuges, sanctuaries and management reserves under the Wildlife Act 1953, significant natural areas under the RMA*)

V. Protected landscape or seascape: Where the interaction of people and nature over time has produced a distinct character with significant ecological, biological, cultural and scenic value: and where safeguarding the integrity of this interaction is vital to protecting and sustaining the area and its associated nature conservation and other values. (*Hauraki Gulf Marine Park under the Hauraki Gulf Marine Park Act 2000*)

VI. Protected areas with sustainable use of natural resources: Areas which conserve ecosystems, together with associated cultural values and traditional natural resource management systems. Generally large, mainly in a natural condition, with a proportion under sustainable natural resource management (where low-level non-industrial natural resource use compatible with nature conservation is seen as one of the main aims). (*Possibly taiāpure and mātaītai reserves, although their prime purpose is not biodiversity protection, but recognition of rangatiratanga and fisheries rights,⁹ and the special relationship of tangata whenua with traditional fishing grounds*)¹⁰

When compared to many other countries, the range of MPA categories recognised in New Zealand seems limited. For example:

- In California the Marine Managed Areas Improvement Act 2000 provides for state marine reserves (strictly no-take areas), state marine parks (which exclude commercial activities and restrict other uses), state marine conservation areas (which provide for limited commercial and recreational harvest), state cultural preservation areas (where important cultural objects or sites of historical, archaeological or scientific interest are protected), state marine recreational management areas (which protect recreational activities), and state water quality protection areas

2.2 Why establish MPAs?

“By protecting habitats, MPAs safeguard the vital life-support processes of the sea, including photosynthesis, maintenance of food chains, movement of nutrients, degradation of pollutants and conservation of biological diversity and productivity.”¹⁷ (IUCN MPA Guidelines, 1999)

MPAs are a response to multiple and growing pressures on ocean ecosystems and resultant negative impacts on habitats, species and ecosystem functioning. They seek to reduce these pressures, by constraining human activity within defined marine areas. MPAs can allow ecosystems to return to a more natural state (with associated increases in species diversity, abundance and size). Well-designed and managed MPAs can protect marine life within their boundaries, as well as contribute to broader oceanic health, particularly when there are spill-over effects.

MPAs are most effective when large enough to protect functioning ecosystems and when fishing or other marine activities are key stressors on marine ecosystems. It is important to note that they cannot, on their own, address land based stressors such as sediment. However, MPAs can help increase the resilience of marine ecosystems to such broader stressors and serve to highlight the need for action further up catchments.

In New Zealand, the need for MPAs is highlighted by the extent of extractive activity that occurs in the oceans and the widespread changes this has caused to marine ecosystems. They include loss of biogenic seafloor habitats, seamount habitats¹⁸ and kelp forests, and changes to the population structure, size class and relative abundance of different species.¹⁹ There are extensive areas of localised depletion for some species²⁰ and in some cases stock collapses.²¹

MPAs also support the objectives of Te Mana o Te Taiao – Aotearoa New Zealand Biodiversity Strategy which aims to achieve the following five outcomes by 2050: (1) ecosystems, from mountain tops to ocean depths, are thriving; (2) indigenous species and their habitats across Aotearoa New Zealand and beyond are thriving; (3) people’s lives are enriched through their connection with nature; (4) Treaty partners, whānau, hapū and iwi are exercising their full role as rangatira and kaitiaki; and (5) prosperity is intrinsically linked with a thriving biodiversity.²²

Intergenerational equity requires the protection of “non-extractive values and ecosystem services of the marine and coastal environment – intrinsic values, cultural values, wildness values [and] spiritual values...”²³ (New Zealand Conservation Authority)



Te Matuku Marine Reserve which protects one of Waiheke Island's largest and least disturbed estuaries

conservative harvest settings, it is difficult to disentangle the individual effect of each measure.

There is evidence that New Zealand fishers *believe* there is a spillover effect from MPAs demonstrating what is termed the 'rebound' effect. This was highlighted in a study of trawler behaviour in the vicinity of five newly established offshore MPAs (a marine reserve, two benthic protection areas, one closed seamount area and one marine mammal sanctuary) which found that, immediately after each MPA was announced, more vessels fished in the vicinity of the MPA and catch levels increased. As the researchers explained:⁴⁰

Little or no trawl fishing activity occurred within the MPA boundaries prior to their implementation across all five study sites, yet fishing activity and total biomass extraction increased in the wider area surrounding these MPAs after designation.

However, it does need to be acknowledged that not all MPAs are successful⁴¹ and they are only one tool in the marine management toolbox. MPAs need to be well-designed and supported by complementary measures to ensure overall oceans health. Such measures include effective fisheries management under the Fisheries Act, good management of other marine uses under the RMA, and robust land-based management. We discuss these critical aspects further below.

2.3 When are MPAs most successful?

"Not all marine reserves will be successful but some will be. It's not like tuning a precise machine, as it's nature."

Several analyses have been undertaken of a range of MPAs worldwide to identify factors that lead to positive outcomes. For example:

- A 2013 study, which reviewed 74 publications between 2000 and 2013, identified meaningful community engagement, good MPA design, robust governance and strong enforcement as important for positive biological and socio-economic outcomes.⁴²
- A 2014 study investigated 87 MPAs world-wide and concluded that conservation benefits increased exponentially for MPAs that were no take, well-enforced, older than 10 years, and larger than 100km².⁴³

- A 2016 study reviewed 75 MPAs in the Mediterranean Sea and identified high levels of enforcement and fishermen engagement in management as being the most important success factors in achieving healthier fish stocks, higher incomes for fishers, and greater social acceptance of management practices.⁴⁴ In those MPAs, no-take areas are typically surrounded by a buffer zone where small scale fishing is permitted and can benefit from spillover effects.
- A 2018 review of 27 MPAs world-wide, based on first-hand knowledge, identified high levels of stakeholder participation as the most important element for MPAs to achieve their objectives followed by supporting legislation, leadership, explicit objectives, and strong social networks and communication. Factors that led to failure were foremost lack of surveillance, lack of (or delayed) stakeholder engagement, institutional rivalry, low legal compliance and political interests holding sway over ecological needs.⁴⁵
- A 2024 review of 59 MPAs in California found that older MPAs with greater habitat diversity had greater fish biomass, with the size of individual MPAs less important in achieving this.⁴⁶

International studies indicate that strong stakeholder engagement, good design with clear objectives, and strong enforcement are key to MPAs achieving positive outcomes.

2.4 MPAs and the Treaty

Article 1 of the Treaty empowered the Crown to govern and make laws, including over the marine area, and in particular to protect Māori communities from the harmful effects of settlement. This power was expressed in the Māori version of the Treaty as *kāwanatanga*.⁴⁷

At the same time, Article 2 guaranteed "*te tino rangatiratanga*" over traditional lands and *taonga* including fisheries. As the Waitangi Tribunal has explained, this includes three key elements: (1) Authority or control; (2) The exercise of authority in a way that recognises its spiritual source, and the spiritual source of the *taonga* concerned, with the object of maintaining the tribal base for future generations; and (3) Applied not only to the *taonga* but to people within the kinship group including their access to resources.⁴⁸

The Marine and Coastal Area (Takutai Maoana) Act 2011 (MACA Act) directly interfaces with marine protection and, although not providing for full customary rights,⁶¹ still provides a strong role for Māori. When making a decision on marine reserves or other conservation processes (such as declaring a marine mammal sanctuary or permitting marine mammal tourism), the Director-General of Conservation must have “particular regard” to the views of affected iwi, hapū or whānau.⁶² If the marine reserve or other proposal is within an area subject to a customary marine title then the title holding group must give permission before it can proceed (see spotlight).⁶³

Spotlight on the Marine and Coastal Area (Takutai Moana) Act 2011

The MACA Act sets as a starting point that no-one owns or is capable of owning the “common marine and coastal area”.⁶⁴ It then introduces a formal framework to enable Māori customary rights in the area to be formally recognised and protected. The redress options under the Act are customary marine title, wāhi tapu protection and protected customary rights. Numerous applications for customary marine title have been lodged but few have been determined.⁶⁵ Customary marine title confers a basket of rights including a RMA permission right (with permission required before activities can proceed in the area), a conservation permission right (with permission required for the establishment of marine reserves), a protection right for wāhi tapu, a right to be consulted on changes to the New Zealand Coastal Policy Statement, and ownership of minerals (other than petroleum, gold, silver and uranium).⁶⁶ Recognition of a protected customary right (through a customary rights order) protects customary activities, uses and practices so they do not require consent.

Although the Marine Reserves Act makes no reference to the Treaty, it has been directly applicable to the Act’s administration since 1987, by virtue of section 4 of the Conservation Act 1987 (which requires the Act to be “interpreted and administered” so as to “give effect to the principles” of the Treaty). This requirement applies to the administration of the Marine Reserves Act by virtue of section 6 (Department of Conservation (DOC) functions) and schedule 1 (the enactments “...DOC is responsible for administering” which includes the Marine Reserves Act).

Joseph et al (2020) provide some insights into how the Treaty and tikanga Māori can be recognised in the context of marine protection. Potential measures include:⁶⁷

- Recognising the mauri of the area

- Ensuring meaningful iwi and Māori involvement in all stages of MPA establishment
- Providing for tikanga Māori (see spotlight) in the creation of MPAs
- Integrating mātauranga and tikanga Māori with mainstream science
- Providing for co-management or devolved management of MPAs with iwi and/or hapū
- Emphasising the role of Māori as kaitiaki
- Ensuring customary fishing activities are appropriately accommodated.

Spotlight on tikanga Māori

Tikanga is the law and custom of specific iwi and hapū. It is underpinned by the core values of whanaungatanga (kinship), mana (leadership), tapu (social control), utu (reciprocity) and kaitiakitanga (obligation to care for one’s own).⁶⁸ Whanaungatanga infuses the world view of Māori, referring not “only to family ties between living people, but rather to a much broader web of relationships between people (living and dead), land, water, fauna and flora, and the spiritual world of atua (gods) – all bound together through whakapapa.”⁶⁹ (Waitangi Tribunal)

It is also important to note that international agreements (to which New Zealand is a party) require protected areas to be effectively and equitably managed with “full participation of indigenous and local communities” and “recognizing and respecting the rights of indigenous peoples” (see section 4.1 below). Overall, this means that Māori need to be “respected partners” in marine protection efforts and indigenous knowledge, rights and interests should inform marine decision-making.⁷⁰

“... the future survival of the marine and coastal seascape of Aotearoa New Zealand ... depends on how we effectively and appropriately implement shared co-governance and concurrent jurisdiction between the Crown, local government, Māori and other key stakeholders ...”⁷¹ (Joseph et al, 2020)

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- 54 Ibid, at 296
- 55 Ibid, at 149
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limited [scientific] activities on that scale seriously interfere with mining rights or commercial fishing?”⁷

Spotlight on meaning of “interfere unduly” and “adversely effect”

In 2010, the Minister of Conservation declined an application for a marine reserve in Akaroa Harbour on the basis that it would “unduly interfere with or adversely affect existing recreational fishing”. The Akaroa Marine Protection Society, which had proposed the marine reserve, challenged the Minister’s decision on judicial review in the High Court. Justice Whata confirmed earlier court decisions (relating to impacts on commercial crayfishers from the establishment of the Te Tapuwae o Rongokako Marine Reserve – see spotlight below) that “undue” means “unjustified or unwarranted in a qualitative sense”. It requires a “balancing of the effect on fishers against other values involved”.⁸ This included consideration of the wider public interest and overall public advantages which flow from the reserve.⁹ It means that significant public benefits can trump impacts on fishing interests. The judge went on to find that the “adversely affect” threshold should be applied in a similar manner to “interfere unduly” and that “the Minister must be satisfied that the adverse effect would be both excessive and unjustified” before turning down the proposal.¹⁰ The Minister’s decision was overturned and the marine reserve was finally established in 2014.

When the Act first passed, the Minister of Marine (who had oversight of a wide range of marine matters including fishing and navigation) was solely tasked with recommending the making of an Order-in-Council to create a marine reserve. When the Marine Reserves Act was amended by the Conservation Law Reform Act, in 1990, the Minister of Conservation took on the recommendatory role, but was now required to obtain the concurrence of the Ministers of Transport and Fisheries.¹¹

The Act initially provided for marine reserves to be managed by local committees. Appointed by the Minister, these comprised five members including a Marine Department officer and a person qualified in marine research. Committees could inquire into and report to the Minister on any matter relating to the reserve and marine life “within or outside” it; recommend the appointment of reserve rangers; authorise taking of marine life for scientific purposes; and make bylaws (subject to approval by the Minister).¹²

In the face of some opposition, the committees were abolished in April 1990 under the Conservation Law Reform Act, with DOC assuming

management responsibility for marine reserves.¹³ The power to make bylaws was repealed at the same time, with any rule changes for marine reserves now requiring regulations.¹⁴ This was in stark contrast to reserves on land, where under the Reserves Act 1977, the ability to establish management committees and boards, and delegate powers and functions to them (including bylaw making powers) remained.

“I am concerned that the Government is abolishing marine reserve management committees, which of course, led to the establishment of the marine parks... the [Conservation Law Reform] Bill takes away committees that led to the establishment of ... the Goat Island marine reserve, and the like.”¹⁵ (Roger Maxwell, National Party MP)

When the Conservation Law Reform Act made these sweeping changes, almost two decades had passed since the Marine Reserve Act came into force, and only two marine reserves had been established. Both were small and only one was fully ‘no-take’. The first was at Cape Rodney-Okakari Point (in 1975) and the second around the Poor Knights Islands (in 1981). Some forms of recreational fishing were permitted in the Poor Knights Islands marine reserve, for the first 17 years of its operation, but all fishing was excluded after it became clear this was significantly impacting marine life.¹⁶

There was evident reluctance to use the Marine Reserves Act during its early years. Marine protection was also put in place at Tawharanui in 1981 (which was no-take) and Mimiwhangata in 1983 (where some recreational fishing was permitted), but this was effected under the now repealed Harbours Act 1950 and Fisheries Acts 1908 and 1983. Even after DOC took over responsibility for marine conservation, in 1987, little progress was made (see spotlight). However, Tawharanui became a marine reserve in 2011 and Mimiwhangata was finally protected as a no-take area, in 2023 (under the Northland regional coastal plan) after an earlier effort to turn it into a marine reserve had failed.¹⁷



Mimiwhangata which is now protected under the Northland Regional Coastal Plan

Marine Reserve	Date Gazette/ Order	Government	Size (ha)
Cape-Rodney-Okakari Point	November 1975	Labour (Rowling)	547
Poor Knights Islands	February 1981	National (Muldoon)	1,890
Kermadec Islands	October 1990	Labour (Moore)	748,000
Kapiti	April 1992	National (Bolger)	2,167
Tuhua (Mayor Island)	December 1992	National (Bolger)	1,060
Te Whanganui-A-Hei (Cathedral Cove)	December 1992	National (Bolger)	840
Long Island – Kokomohua	March 1993	National (Bolger)	619
Piopiotaahu – Milford Sound	September 1993	National (Bolger)	690
Te Awaatu Channel	September 1993	National (Bolger)	93
Tonga Island	October 1993	National (Bolger)	1,835
Westhaven (Te Tai Tapu)	April 1994	National (Bolger)	536
Long Bay – Okura	October 1995	National (Bolger)	980
Moti Manawa – Pollen Island	October 1995	National (Bolger)	501
Te Angiangi	July 1997	National (Bolger)	446
Pohatu	May 1999	National (Shipley)	215
Te Tapuwae O Rongokako	October 1999	National (Shipley)	2,452

Figure 3.1 Marine reserves established within 30 years of the Marine Reserves Act coming into effect

In January 2002, Conservation Minister (and Alliance Party MP) Sandra Lee announced that the Government would be promoting a Bill to overhaul the Marine Reserves Act. Hailed as being “the most significant advance in conservation legislation” in more than a decade, it was intended to progress the objectives of the country’s first Biodiversity Strategy (finalised in 2000) and help meet national commitments under the Convention on Biological Diversity.¹⁹

A Marine Reserves Bill was duly introduced into Parliament in June, just prior to the July general election, at which Minister Lee retired from politics. Labour subsequently formed a coalition government with the Progressive Party, with confidence and supply support from United Future. The Bill had its first reading in October 2002. The new Minister of Conservation, Labour MP Chris Carter, reiterated the urgency to establish a network of marine reserves to meet international and national targets of covering 10 per cent of the country’s marine environment by 2010.²⁰

“Marine reserves provide our children and grandchildren with the opportunity to visit majestic and unspoilt underwater worlds teeming with plants, fish, and other wildlife. Like the National Parks Act and the Reserves Act on land, a fundamental principle is that people have free access to enjoy these protected areas as long as the natural values are not harmed.”²¹ (Chris Carter, Minister of Conservation on the first reading of the Marine Reserves Bill)

The Minister explained that the Marine Reserve Act’s processes were cumbersome and ill defined. The process for establishing marine reserves was invariably beset with “significant delays ... despite proposals fully meeting the criteria for reserve status”. Proposals were often controversial with considerable opposition from fishers and others. All this had created a backlog of proposals and the amount of marine area protected by marine reserves remained minimal.²²



People enjoying the Cape Rodney-Okakari Point Marine Reserve

submissions were received with 98 oral submissions being heard by the committee.³⁴ It then received advice on a number of contentious issues including extension to the EEZ, minerals activities, interface with the RMA, concurrence decision-making, and providing an opportunity for appeal.³⁵ But progress was stymied by the foreshore and seabed controversy, which erupted in June 2003 (see spotlight), and had a chilling effect on any progress on oceans matters for many years.

Spotlight on foreshore and seabed controversy

In a decision released on 19 June 2003, the Court of Appeal found that the Māori Land Court had jurisdiction to determine whether the foreshore and seabed (which extended seawards 12 nautical miles) was Māori customary land.³⁶ Within a week, government had announced that it would legislate to protect public rights of access to and use of the coast, while at the same time protecting customary rights.³⁷ In the face of very strong Māori opposition, the government passed the Foreshore and Seabed Act, in November 2004. This led to much protest including the late Dame Tariana Turia, a Minister in the Labour-led government, resigning on the basis that the move was outright confiscation of Māori land.

During the delay resulting from the foreshore and seabed controversy, politics around the Bill shifted. United Future, which provided confidence and supply support for Labour-led governments after the 2002 and 2005 general elections (and had agreed to support the Bill to select committee) became a stronger opponent of the Bill. In April 2005, United Future Leader Peter Dunne announced that he was “pleased to be able to stop the Marine Reserves Bill from going through to the House ... because it is an ill-conceived bill and still allows for the Department of Conservation to take too many heavy-handed measures in providing marine reserves all over the country.”³⁸ His concern was that the Bill would open the floodgates to environmental groups pushing for more and more marine reserves.³⁹

“The Marine Reserves Bill was possibly the longest running Bill sitting on the order paper. No-one was wanting to take it off the parliamentary order paper but no-one was willing to progress it either. It was left sitting there as a symbol of national disfunction.”

The select committee had resolved to suspend work on the Bill, a month earlier, and requested a number of extensions to its report back date.⁴⁰ In December 2008, the incoming (National) Minister of Conservation Tim

Groser reiterated the Government’s commitment to review the Marine Reserves Bill and get it passed in its first term.⁴¹ This proved overly optimistic. National was a minority government with confidence and supply support from the Māori Party along with parties that had opposed the Bill (ACT and United Future). This political arrangement continued after the 2011 general election, at which time the Bill was still languishing at select committee.

Spotlight on 2011 MPA gap analysis

While the Marine Reserves Bill languished in Parliament, progress in expanding the country’s MPA network was slow. A 2011 gap analysis reported that 6.9 per cent of the territorial sea was protected in Type 1 MPAs, increasing to 8.1 per cent when Type 2 MPAs were included. However, 97 per cent of the Type 1 MPA coverage (and 83% of total MPA coverage) was in two remote areas, the Kermadec Islands and the Subantarctic Islands. *Other than the Fiordland bioregion, which had around 1 per cent protection, the remaining coastal bioregions in the territorial sea had 0.3 per cent or less.*⁴²

In 2011, the MACA Act repealed the earlier Labour Government’s highly controversial foreshore and seabed legislation, and sought to put to bed the controversy that surrounded it. The way was now potentially clear for MPA reform to proceed. National withdrew the Marine Reserves Bill from Parliament in 2013, with the promise of a new bill, after Nick Smith became Minister of Conservation. A discussion document on new legislation was finally released in January 2016.



Statue of Aotea waka in Patea, Taranaki highlighting the integral connection between Māori culture and the sea

However, only two fora were established before further implementation of the MPA policy was put on hold. The first was the West Coast Marine Protection Forum, set up in 2005, followed by the Sub-Antarctic Regional Marine Protection Planning Forum formed in 2008. These notably covered areas with a small or no resident population, thereby reducing the likely opposition to marine protection, although also avoiding marine areas where pressures were most acute.⁴⁵ Both were established under a Labour-led government but reported back in 2010 to a National-led government. Networks of MPAs in both areas were finally established in 2014.

A third MPA forum was established in 2014, under a National-led government, for the South-east coast of the South Island (SEMP). This provided recommendations in 2018 to a Labour-led government, which undertook statutory processes before approving six marine reserves.⁴⁶ However, the Labour Party lost power in the 2023 general election before the reserves were confirmed by Order in Council. The proposals now rely on a National/ACT/NZ First coalition government for implementation. To complicate matters further, the marine reserves are currently subject to legal proceedings in the High Court.⁴⁷

Other collaborative processes, initiated by the community, also produced recommendations for MPAs during this period including in Kaikōura (2012) and the Hauraki Gulf (2016). The Fiordland, Sub-Antarctic Islands and Kaikōura networks were implemented through bespoke legislation.⁴⁸ More than eight years after consensus recommendations on a MPA network were provided for the Hauraki Gulf, special legislation to create them was (at the time of writing) awaiting a Third Reading.⁴⁹

Spotlight on reviews of collaborative marine planning processes

In a 2018 article, a group of researchers explored the role of participation and collaboration in 13 case study processes which had sought to identify and implement MPAs around the country. They concluded “our analysis has shown that MPA planning in Aotearoa NZ has evolved from previously adversarial processes into more collaborative ones that are accompanied by improvements in efficiency and broad support for MPA implementation.”

The researchers credited this shift to the “increasingly inclusive and holistic decision-making processes utilized by tangata whenua and stakeholder forums”. They emphasised the need to consider the role of MPAs within the broader social and ecological system rather than treating them just as a biodiversity protection tool.⁵⁰

In 2019, the Controller and Auditor-General reviewed collaborative marine planning processes used in Kaikōura and for the SEMP.⁵¹ The scope of the Kaikōura process was broad, being hapū initiated, designed and led, with support provided by DOC.⁵² The SEMP was initiated by the then Minister of Conservation after which DOC and the Ministry for Primary Industries established an iwi and stakeholder forum tasked with implementing the MPA Policy for the south-east coast.

Unlike in Kaikōura, the ambit of the SEMP forum’s deliberations was intentionally constrained to MPAs only, with other environmental issues impacting the marine area excluded from the agenda. In particular, the forum’s terms of reference explicitly stated that “the Forum should not be diverted by Resource Management Act, aquaculture or fisheries management issues”.⁵³

The Auditor-General’s report found such a constrained focus to be counter-productive, stating that “aspects of the implementation guidelines are too restrictive[and] make it difficult to achieve New Zealand’s marine biodiversity protection objectives”. The report went on to state, “in my view, New Zealanders would value an approach that encourages and enables communities to better support marine protection measures. A more flexible way needs to be found to balance the views and values of those with an interest in the marine environment”. The report concluded by urging government agencies to consider how MPA reform could support greater collaboration between parties.

In 2024, a group of researchers published an analysis of the Kaikōura process and concluded that phase 1 (when Te Korowai guided the development of the strategy) embraced a governance structure which “reflected the local community’s values and engaged in an embedded, ‘bottom-up’, and inclusive decision-making process”. However, when the outcomes were formalised in legislation and the Kaikōura Guardians established, the governance structure became more rigid and top-down, and struggled to deliver benefits for the community or the environment.⁵⁴

It is evident that collaborative processes have been a key driver behind the expansion of the MPAs since 2000 (see Figure 3.3). Although a number of small individual MPAs have been created during the past 25 years (and a large one around the Auckland Islands), by far the most progress around the mainland coast has been made via collaboration. However, by 2014, progress through this method had also stalled and no new marine reserves have been created over the past decade.

3.4 Aborted Marine Protected Areas Act

In January 2016, the Ministry for the Environment (MFE) released a consultation document on a 'new Marine Protected Areas Act'.⁵⁵ Notably, the MPA policy process was now being led by MFE, a more 'balanced' Ministry than conservation-orientated DOC. The process was being driven by former Conservation Minister Nick Smith who was now Minister for the Environment.

The release of the consultation document followed an announcement by Prime Minister John Key, in September 2015, that his government would create an enormous Ocean Sanctuary of 620,000 km² around the Kermadec Islands. This was to be through bespoke legislation which was introduced into Parliament in March 2016.⁵⁶

In many respects, the proposals in the consultation document were similar to the provisions in the failed Marine Reserves Bill (see Figure 3.4). However, there were important differences designed to address some of the earlier sticking points. For a start, the EEZ was excluded, thereby removing any potential impacts on deep sea fisheries. In the territorial sea, the "undue adverse effect" test was to be replaced by an independent assessment of economic impacts.

The controversy over the Conservation Minister having sole decision-making power was addressed by bringing in a larger group of Ministers to make decisions. In addition, the processing of applications was taken out of the hands of DOC. In a nod to the evident success of collaborative processes, these were to be given formal recognition. Recommendations to the Minister were to be provided by either a collaborative process or an independent board of inquiry.

Notably, the 2016 proposals included a range of MPAs, not just marine reserves. They effectively brought into the same framework marine mammal sanctuaries under the Marine Mammals Protection Act (in species-specific sanctuaries) and benthic protection areas created through the use of sustainability measures under the Fisheries Act (in seabed reserves). A more controversial inclusion was recreational fishing parks, which were arguably not a MPA tool at all, but a fisheries management mechanism designed to address conflicts between commercial and recreational fishers.

The public submission period on the proposals closed in March 2016 and at that point this initiative also stalled. The erupting controversy over the Kermadec Ocean Sanctuary, and dispute over compensation for loss of fisheries rights, had a chilling effect on the development of new MPA legislation (see spotlight).

Spotlight on Kermadec Ocean Sanctuary

In September 2015, at the United Nations General Assembly in New York, Prime Minister John Key announced that Aotearoa New Zealand would create an oceans sanctuary around the Kermadec Islands. At 620,000 km², twice the area of the country's landmass, this was to be "one of the world's largest and most significant fully protected ocean areas" over "one of the most pristine and unique places on earth".⁵⁷

The Kermadec Islands themselves are a nature reserve managed by DOC. A marine reserve had protected the territorial sea surrounding the islands since 1990. In addition, a benthic protection area, established in 2007 under the Fisheries Act, protects the EEZ around the islands from bottom-impacting fishing methods and overlays the marine reserve.

The decision to create the sanctuary was kept secret until just before the announcement. Affected parties such as mana whenua (Ngāti Kuri and Te Aupouri), Te Ohu Kaimoana (TOKM) which held Māori fisheries quota for the area, and deep sea mining company Nautilus Minerals NZ Limited which had a live prospecting application over the area, were informed by telephone the night prior to the announcement.⁵⁸

The Kermadec Ocean Sanctuary Bill was introduced into Parliament, in March 2016, with cross-party support and referral to select committee. The purpose of the Bill was to "preserve the Kermadec Ocean Sanctuary in its natural state".⁵⁹ Shortly afterwards, TOKM launched judicial review proceedings against the Government as did the New Zealand Fishing Industry Association. Meanwhile, public submissions were sought on the Bill, and the select committee reported back to Parliament in July with some minor recommended changes. The Bill then stalled while parties sought a negotiated settlement to the legal proceedings.

The proposed Kermadec Sanctuary coincided with Fishery Management Area 10 (FMA 10). The main issue of contention was that the Bill inserted into the Fisheries Act a prohibition on all fishing within FMA10. It also set the total allowable catch (TAC) and total allowable commercial catch (TACC) to zero for all stock that coincided with FMA10. This meant that the fisheries quota itself was not extinguished but it could not be utilised until the TACC was increased.⁶⁰

When the quota management system was introduced, nominal quota was created for FMA10, in the event that a commercial fishery might be established there. This had yet to occur and so the quota was

Attribute	Marine Reserves Bill 2000	MPA Act proposals 2016	MPA Act proposals 2021
EEZ	Included	Excluded	Included
Type of MPA	Marine reserves	Marine reserves, species-specific sanctuaries, seabed reserves and recreational fishing parks	Marine reserves, marine conservation areas
MPA Policy	No	No	National MPA Strategy
Impacts on other users	Must have no “undue adverse effect” on a range of activities including commercial and recreational fishing, recreational use, economic use and development, adjoining land interests, navigation, education and research	Mandatory independent assessment of economic impact of a proposed MPA	“undue adverse effects” threshold for existing interests
Compensation	No	Only payable to quota owners subject to “materially significant” impacts from recreational fishing parks	No
Initiation	Any person may initiate	Joint Ministerial decision on initiating proposal	Either government-initiated regional scale processes or expression of interest by an individual, iwi/Māori or group and confirmed by Ministerial decision
Processing	Director-General decides if proposal can proceed, notifies for public submission, and reports to Minister	Collaborative process or board of inquiry makes recommendations to relevant Ministers	Government-led or collaborative process to develop up proposal followed by public consultation
Decision	Minister of Conservation	Jointly by relevant Ministers (must include Conservation, Primary Industries, Environment and Māori Development Ministers)	Jointly by Ministers of Conservation and Oceans and Fisheries
RMA interface	Silent	MPAs to be recognised in regional coastal plans and taken into account in decision-making	Spatial protections under the RMA can be recognised as MPAs
Review	Yes if required under Order in Council or reserve no longer meets the purpose of the Act	Periodic review of MPAs undertaken by collaborative process or board of inquiry	National MPA Strategy reviewed every 10 years; periodic review of MPAs

Spotlight on public views on marine reserves

In 2011, the World Wildlife Fund commissioned a Colmar Brunton poll to measure public attitudes to the oceans. This revealed that 96 per cent of the public thought a much higher percentage of the marine environment should be protected in marine reserves.⁷⁸ When asked what percentage of the marine area should be within marine reserves, the mean figure of polling undertaken in both 2005 and 2011 was 36 per cent. For Māori, the preferred percentage was even higher, at over 50 per cent.⁷⁹

More than a decade later, in 2024, a World Wildlife Fund-commissioned Horizon Research poll found that 81 per cent of adults thought marine protection should be expanded. Over half thought that 15 per cent or more of the oceans should be in MPAs, with 30 per cent saying the figure should be 30 per cent or more. Support was strongest amongst Te Pāti Māori voters with 68 per cent seeking 20 per cent or more protection.⁸⁰

The disproportionate number of Māori who support marine protection in these polls is significant, and indicates that increased protection is not contrary to the aspirations of many Māori.

3.6 Prospective Hauraki Gulf Bill

The Sea Change Tai Timu Tai Pari process delivered a consensus spatial plan for the Hauraki Gulf in late 2016. The plan included a network of MPAs, along with a range of other actions addressing matters such as fisheries management, land-based impacts and aquaculture.



The Noises which is slated to be protected by an HPA under the Hauraki Gulf / Tikapa Moana Marine Protection Bill

Implementation of the plan languished for many years. It was not until 2021 that the Labour-led government indicated an intention to progress the plan in 'Revitalising the Gulf'. It then took another two years to finalise the Hauraki Gulf / Tikapa Moana Marine Protection Bill, which was introduced into Parliament in September 2023 and sent to select committee, just prior to the October national election which Labour lost.

Spotlight on key provisions in the Hauraki Gulf / Tikapa Moana Marine Protection Bill 2023

The Bill creates 12 new 'high protection areas' (HPAs) and 5 new 'seafloor protection areas' (SPAs) along with extensions to two existing marine reserves. The HPAs and SPAs are new protection tools which do not currently exist in the MPA toolkit. In this way, the Bill creates a bespoke MPA regime. The key features of the Bill include:

- Providing a purpose for HPAs which is "to protect and enhance indigenous biodiversity within the high protection areas and, if that biodiversity is degraded, restore it."
- Providing a purpose for SPAs which is "to maintain indigenous benthic habitats within the seafloor protection areas and, if those habitats are degraded, restore them."
- Prohibiting a wide range of activities within HPAs including fishing, mining and aquaculture (but not customary non-commercial fishing)
- Prohibiting bottom-trawling, Danish seining, dredging, mining and other activities impacting the seabed in SPAs
- Providing for the development of biodiversity objectives for HPAs and SPAs in collaboration with iwi
- A permit system for authorising prohibited activities within a HPA or SPA
- Detailed enforcement provisions including ability to issue infringement notices and appointment of honorary rangers
- A 25-year Ministerial review

Over 7,000 submissions were lodged on the Bill indicating the very high level of public interest.⁸¹ The select committee heard public submissions and reported the Bill back to Parliament (in June 2024) with minor

marine areas and a relational te ao Māori worldview where economic interests and a responsibility to care for the environment are not seen as necessarily inconsistent. This all highlights that Māori leaders will almost certainly need to be an integral part of any future MPA policy development for it to succeed.

Concerns about the impacts of MPAs on fishing communities, have also slowed down progress, and have received support from minor coalition political parties. Notably, the current Minister for Oceans and Fisheries and NZ First MP Shane Jones, sees himself as a “forceful” advocate for the commercial fishing sector.⁸³ Poor initial engagement in the development phase of MPA proposals, in some cases, and lack of integrated management of other impacts on the marine area have served to exacerbate concerns. Future MPA reform will need to engage with, and seek to at least partially resolve, such issues.

The short Parliamentary term of just three years has also been unhelpful. Some Ministers ran out of time in their portfolio. In other instances the consultation process ran over successive terms of government where it became difficult to maintain political momentum. Slowness of the government bureaucracy, in bringing proposals to fruition, has also been problematic. Delays in consultation, due to Covid-19, have hampered more recent MPA proposals. By the time progress is finally made, it is often too late, as the politics has changed. This all highlights the fact that we lack enduring leadership across the oceans space.

“Regardless of the discussion of marine protection mechanisms – the fundamental dispute is over ownership and control of oceans space. For now I suspect officials and Ministers will be feeling extra cautious. No one’s able to get progress.”



Commercial fishing vessels, Viaduct Basin, Auckland. Concerns about the impacts of MPAs on commercial fishing has slowed down progress with MPA reform

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‘Representation’ has long been identified as an important characteristic of conservation planning along with ‘connectivity’ between protected areas. This is to help ensure that a sample of all biodiversity is protected, within the protected area network, and that each protected area supports others in the network.⁵

In 2016, the New Zealand Biodiversity Strategy was supplemented and updated by an ‘Action Plan for 2016-2020’. This significantly weakened the earlier MPA commitment in the Biodiversity Strategy itself, providing a national target that by 2020 “a wider range of marine ecosystems will be in protected areas”.⁶ It notably omitted concepts such as ‘ecologically representative’ and ‘well-connected’ along with any minimum coverage figure.

30 by 30’ (2022)

The Kunming-Montreal Global Biodiversity Framework, adopted in December 2022, contains Target 3 which specifically refers to MPAs. This triples the coverage requirement from 10 to 30 percent (something that had been recommended by scientists since at least 2014)⁷ and includes an added requirement to recognise and respect the rights of indigenous peoples and local communities.

Kunming-Montreal Global Biodiversity Framework Target 3:
“Ensure and enable that **by 2030 at least 30 per cent ... of marine and coastal areas**, especially areas of particular importance for biodiversity and ecosystem functions and services, are effectively conserved and managed through **ecologically representative, well-connected and equitably governed systems of protected areas** and other effective area-based conservation measures **and integrated into wider ... seascapes** and the ocean... **recognizing and respecting the rights of indigenous peoples** and local communities, including over their traditional territories.”

Somewhat surprisingly, when New Zealand’s biodiversity strategy was updated in 2020, the MPA provisions were not strengthened to reflect this international sentiment but were further watered down. The goal for 2030 was “significant progress”, and this was not in protecting representative and connected marine habitats and ecosystems, but protecting only those of “high biodiversity value”.

Overall, the New Zealand Government’s policy has been backsliding while international commitments, to which the country has signed up,

have become much more rigorous (see Figure 4.1). Postively, in 2022, Government adopted the global protection target of 30 by 30 with then Conservation Minister Poto Williams stating that “marine protection needs to be purposefully designed and well managed to protect the full range of nature’s diversity”.⁸ However, the Government has yet to determine what New Zealand’s contribution to the global target will be, other than referring to the national biodiversity strategy,⁹ which (as noted above) contains weak commitments.

This desultory approach to marine protection has potential international trade implications. These are taking on more resonance in an increasingly turbulent international trading context. For example, the New Zealand-European Union Free Trade Agreement, which entered into force in May 2024, requires New Zealand to “effectively implement” multilateral environmental agreements and protocols it has signed up to.¹⁰

Achievement date	International commitment	National commitment
2010	Effective conservation of at least 10% of ecological regions (2004)	Protect 10% by 2010 in a network of representative areas (2000)
2020	At least 10% conserved in protected areas that are ecologically representative, well-connected, and effectively and equitably managed (2010)	A “wider range” of marine ecosystems in protected areas (2016)
2030	At least 30% conserved in protected areas that are ecologically representative, well-connected, effectively and equitably managed, and in other effective area-based conservation measures, while respecting indigenous rights (2022)	“Significant progress” made in protecting marine habitats and ecosystems of “high biodiversity value” (2020) Support the <i>global</i> protection target of 30% by 2030 (2022)

Figure 4.1: Summary of international and national commitments for MPAs

Such a broader approach also enables a protective regime to cover much more of the ocean realm. For example, marine parks extend over a third of the New South Wales state waters (out to three nautical miles) and 43 per cent of Australian federal waters (out to 200 nautical miles).²⁴ Forty per cent of England's seas are designated as MPAs.²⁵ Very large MPAs, are also becoming common, particularly in the Pacific region. For example:²⁶

- The Pitcairn Islands Marine Reserve is a no-take zone which covers 99.6 per cent of the EEZ.
- The Papahānaumokuākea Marine National Monument, in the remote Northwestern Hawaiian Islands, is the largest no-take marine area in the world covering some 362,000 km².
- The Marae Moana Cook Islands Marine Park is a multi-use MPA which covers the entire EEZ of the Cook Islands.²⁷



Owhiro Bay, Wellington which is part of the Taputeranga Marine Reserve

An advantage of large multiple use MPAs is that protection can be more adaptable, and it can be ramped up over time, if found necessary. This was achieved in the Great Barrier Marine Park, where no-take areas were increased from 4.5 to 33 per cent of the total park area, when the lessor amount was found to be inadequate in protecting marine biodiversity within the park.²⁸ The establishment and management costs of large MPAs, can also be considerably less than creating multiple small protected areas, due to economies of scale (see spotlight).

Spotlight on the costs of establishing marine reserves

In 2008, the Taputeranga Marine Reserve was established over 855 ha of marine space on the Wellington coast, after 17 years of effort. The pre-establishment cost of the reserve has been estimated as being around \$500,000 (in 2012 dollars) of which 60 per cent was funded by government and the balance provided by donor support and voluntary labour. After the reserve was gazetted the establishment costs incurred by DOC included the placement of signs, education of the public, and purchase and operation of a new boat. These were valued at an additional \$350,000, bringing the total cost of creating the marine reserve and establishing management infrastructure to support it to \$850,000 or around \$1,000 per hectare. Ongoing management costs were around \$60,000 a year which included part of a ranger's salary, boat running costs, maintaining equipment and signs, and printing brochures and posters.²⁹ This illustrates the very high cost of creating individual small MPAs when compared to creating integrated regional networks (such as in the Hauraki Gulf where 83,378 ha of Type 1 MPAs are proposed) where there are economies of scale.

Such large multiple-use designations can, however, be 'paper parks' when the areas lack strict controls on damaging activities. For example, bottom trawling and aggregate dredging are permitted within many MPAs in English waters.³⁰ Bottom trawling is also permitted within parts of the Hauraki Gulf Marine Park raising the question of whether an appropriate line has been drawn between sustainable use and biodiversity protection. And as indicated earlier, research has indicated that strictly no-take areas are more successful at protecting marine biodiversity. This means that a mix of both approaches could have some merit, as applied in other countries (as outlined in section 2.1 above).

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has stated it is not opposed to marine reserves where it has been “clearly established that a need for special protection exists”. However, in its view, they should not include “average or typical” examples of marine habitats but only areas that are “particularly fragile and/or vulnerable to a range of potential impacts”.²

The starting point is that fishing should be able to take place unless significant risks are established (ie the burden of proof is on the MPA proponents). However, establishing such risks can be difficult, particularly as fisheries data has not historically been collected at the relatively fine spatial scale that MPAs operate at (although this is changing with recent developments in electronic reporting).

According to fishers, identified risks should be managed using the most appropriate, and least cost, tool.³ Fisheries management tools are to be preferred, if biodiversity risks are caused by fishing, as they are more targeted and flexible. Marine reserves should only be used as a last resort.

“If you want to control fishing we have lots of tools. There doesn't have to be a lock-out.”

In addition, MPAs can be seen by fishers as a reallocation of space from fishers to non-extractive users (such as when MPAs are designed for educational and/or recreational purposes), rather than serving primarily as a biodiversity protection tool. Although such a reallocation may be desirable in the public interest, fishers consider that in such cases, redress should be provided.

The current MPA system can be abrasive to Māori. The concept of conserving marine areas in their “natural state” (as provided for under the Marine Reserves Act)⁴ is premised on a construction of nature that largely excludes humans. Protected areas become an ‘other’ – seascapes where people are ‘visitors’.⁵ Such an approach does not align well with the cultural values of iwi, hapū and whānau who seek to continue customary practices and maintain relationships and connections with place. Permanent no-take areas can sever cultural connections and obstruct the exercise and transmission of intergenerational customary practices.⁶

As former Māori Party MP Hone Harawira noted, there are significant disincentives for iwi to support marine reserve proposals even where they agree extra protection is needed, because “the Marine Reserves Act 1971 means that the Crown will retain ownership of their rohe and alienate them from governance and management”.⁷ Despite this, iwi and hapū

have supported various MPA proposals over the years⁸ and there have been more recent efforts to better tailor the application of the Marine Reserves Act to address cultural concerns (eg see the SEMP arrangements described below).

Where some form of marine protection is recognised as being needed, customary management tools can be preferred, as they offer greater flexibility, are seen as promoting a more balanced and holistic approach to oceans management, and are more supportive of rangatiratanga and the application of tikanga (‘tikanga-based approach’). Such tools are increasingly being recognised internationally, as contributing to protected area targets, through providing “other effective area-based conservation measures”.⁹

Spotlight on traditional Māori approaches to marine protection

An ethic of care and protection is built into a range of Māori traditional approaches such as mauri (which recognises the life essence), tiaki and taurima (an ethic to actively care, to tend), atawhai (to show kindness) and manaaki (to care for, uplift authority).¹⁰ In “the marine environment, the traditional Māori conservation ethic is most widely understood by the term ‘rāhui’, a temporary protection of a food supply. The authority or mana employed is human, meaning that a rangatira (chief) declares a resource to be under his/her protection and establishes a rāhui, often indicated by means of a pou rāhui, a mark to designate protection.”¹¹ Mātauranga Māori plays a critical role in these efforts, embodying the “intimate, holistic and embedded relationship that Māori have developed over hundreds of years with the natural environment”.¹²

5.2 Utility of MPAs

There is also a divergence of views as to the utility and effectiveness of MPAs in oceans management.

“It may seem counter-intuitive that restricting fishing in an area will result in more fish elsewhere. Yet, this happens because marine life disperses from its safe haven (the MPA), which acts like a reservoir to replenish adjacent fisheries.”¹³ (Mark Costello)

As outlined in section 2.2, published scientific literature has identified a range of positive outcomes from MPAs, with fully no-take areas having

Whatever the actual harvest loss was, the area's closure forced ten commercial crayfishers to move into areas that were already heavily fished. Gisborne-based crayfishers, who had taken between 10 and 40 per cent of their catch from within the reserve area, were disproportionately affected.²⁷ None of the negative impacts on them, as a result of the marine reserve creation, were explicitly addressed.

The CRA3 spawning stock had been heavily fished down during the 1980s (prior to being brought into the quota management system) before experiencing a small rebound during the 1990s. By the time the marine reserve was created, the stock was again rapidly decreasing, and after a small rebound during the late 2000s, it

dropped below the soft limit (which triggers a requirement for a rebuild plan)²⁸ during the 2010s. The Region 1 portion of the stock (which is the northern and more productive part of the fishery and includes the marine reserve) currently hovers around the soft limit (see Figure 5.1). It is not possible from the Figure to discern any obvious impact, either positive or negative, from the marine reserve which was created after the fishery was already in decline.

Crayfishers consider that the harvest effort, displaced by the marine reserve, served to exacerbate the downhill trajectory of the fishery. Certainly, there was no downward adjustment in the TACC to account for the spatial closure. In fact, the TACC was increased by more

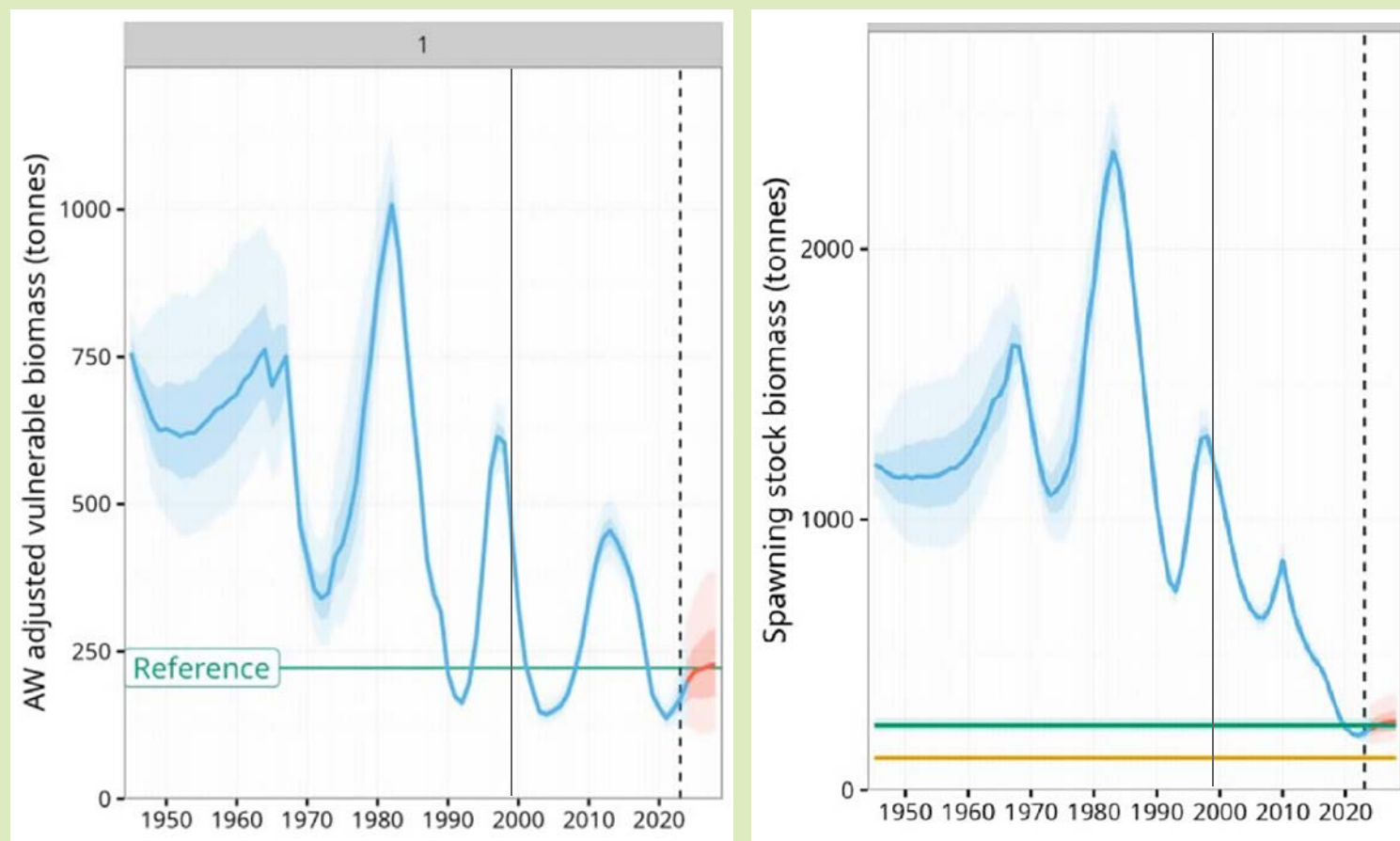


Figure 5.1: Modelled vulnerable (left) and spawning (right) stock biomass for region 1 (north) of CRA3 (Fisheries New Zealand 2024) Green line soft limit, yellow line hard limit. Solid vertical line indicates when the marine reserve was created.

catch, but lease ACE from quota owners (known as ACE fishers). Closures can impact fishers in various ways, including requiring vessels to travel further afield to fish, and creating conflict when fishers are forced onto another's 'patch'. They can also upset the 'balance' of the catch, leaving a gap in a vessel's annual fishing calendar, and rendering its ongoing operation uneconomic.

Spotlight on commercial fisher displacement from the Taputeranga Marine Reserve

The cost of fisher displacement, from the establishment of the 855 ha Taputeranga Marine Reserve on the Wellington coast (in 2008), was quantified based on the actual additional costs incurred by fishers (as opposed to cost estimates prior to the event). Only two vessels were affected, and they both continued fishing in the broader fishery, with total catch unaffected. However each vessel incurred additional costs, primarily due to the additional time and fuel costs incurred from travelling further to more distant fishing grounds, and the purchase of additional gear. This was calculated as being \$22,160 per fishing vessel per year, in 2012 dollars.³⁴

From the outset, it makes sense to design MPA placement and boundaries to minimise any adverse impacts on existing fishers (and where practicable maximise any eventual positive impacts). However, when such impacts cannot be avoided and are significant, some response is likely required.

In terms of addressing displaced effort, Te Rūnanga o Ngāi Tahu put forward a proposal in 2021, in the context of the SEMP proposals. This built on an earlier proposal by commercial fishing interests³⁵ and included three elements:³⁶

- a) *Rebalancing the biological system*: through removing the displaced catch from the fishery. This can be achieved through reducing the TAC and TACC, reducing the recreational allowance (such as through smaller bag limits and reduced minimum legal size), and adjusting levels of customary take where necessary. The aim is to "preserve existing utilisation opportunities in the surrounding fisheries".³⁷
- b) *Rebalancing economic incentives*: to ensure affected quota owners are no worse off financially. This can be achieved through compensating quota owners for the market value of quota shares equivalent to the foregone commercial catch (reduction in TACC).³⁸

In addition, adjustment assistance is to be provided for displaced ACE fishers, and compensation for affected customary (commercial and non-commercial) rights. This might include facilitating iwi access to commercial opportunities in MPAs.

- c) *Rebalancing customary opportunities*: through providing support measures for customary fisheries which could include improvements to the functionality of customary protection tools, iwi MPA rangers, joint management of MPAs, providing for wānanga (selective customary catch) in MPAs, and a generational MPA review.

In the end, the focus in the SEMP proposals was placed on rebalancing customary opportunities through formal co-management of the marine reserves with Ngāi Tahu along with tribal ranger roles, continued enhancement of mātauraka Māori (traditional knowledge) and wānaka (intergenerational sharing of knowledge) within the marine reserves, generational reviews, and retrieval of koiwi tākata (ancestral remains), marine mammal remains and archaeological artefacts provided for.³⁹

"The networks we got for the SEMP, the West Coast and Sub-Antarctics are the networks you get for free. If you want a proper network you pay for it."

Support measures for recreational fishers are less often discussed. To avoid full displacement from an area, the New Zealand Sport Fishing Council has stated that it will "vigorously oppose any marine reserve proposal that attempts to take the total area around any offshore island".⁴⁰

The previous government made it clear that, in its view, the quota management system was always subject to the Crown's ability to create no take reserves, including in the EEZ.⁴¹ This is reflected in the United Nations Convention on the Law of the Sea which is the basis on which New Zealand has sovereignty over the territorial sea⁴² and sovereign rights over fisheries in the EEZ.⁴³ These rights are explicitly subject to both an optimum utilisation of living resources requirement,⁴⁴ and a preservation duty,⁴⁵ with New Zealand having an international obligation to "protect and preserve the marine environment".⁴⁶

However, there are limitations to this approach in the case of Māori settlement quota. The High Court has recently confirmed that fisheries quota transferred to Māori under the 1992 Māori fisheries settlement cannot be unilaterally expropriated without compensation. The Court

Fishers impacted to a lesser extent (but with more than a 10 per cent reduction in catch value) were provided with funded business advice. Licensed fish receivers, who were significantly affected by a lower fish supply, were also eligible for assistance but at a lower rate.⁵¹ Notably, quota owners were not eligible for assistance. This scheme is not dissimilar to the approach taken in Tasmania (see spotlight).

Spotlight on Australian state fisheries compensation schemes

In Tasmania structural adjustment support is available to fishers affected by MPA creation. It is only to be provided where fishers can demonstrate “significant material hardship” as a result of the MPA and that there are “no feasible alternative areas or other options” for them to undertake their activities. The structural adjustment assistance can include payment of fair market value for surrender of a fishing licence or an ex gratia payment to compensate for the cost of readjustment.⁵²

In Western Australia, the West Australian Fishing and Related Industries Compensation (Marine Reserves) Act 1997 establishes a mechanism to address the impacts of MPA creation or adjustment on fishing right holders. Affected persons must demonstrate that the market value of their entitlement has been reduced by the identified event (ie the MPA). The scheme focuses on the market value of the impacts of the MPA on the fishery, not the economic viability of individual fishers.

The unusual circumstances around the Kermadec Ocean Sanctuary, where the quota could not be fished elsewhere (due to the Sanctuary covering the entire FMA10), meant that an exception would also have been made there, if agreement to create the Sanctuary had been reached. This was not seen by Government as creating a precedent, as there would likely be no other cases where an entire fisheries management area was covered by an MPA (and therefore the entire quota held for that area rendered unfishable). As stated by then Environment Minister David Parker:⁵³

The Government had been clear that it was prepared to consider compensation for fishing rights that would have been suspended by the sanctuary. The cost of that would have been relatively modest, given that little commercial fishing takes place in the sanctuary area.

In future MPA reform, it would be possible to include an ‘undue’ or ‘unreasonable’ effects on fishing test, with no compensation payable if the test was met. There are already a number of such tests in legislation (see spotlight) which could be drawn on.

A spotlight on tests for adverse effects on rights and interests

Fisheries sustainability measures

Section 308 of the Fisheries Act provides that the Crown is not liable to pay compensation for measures to “ensure sustainability”, including varying the TACC. “Ensuring sustainability” is defined under Section 8(2)(d) of the Act to include “avoiding, remedying or mitigating any adverse effects of fishing on the aquatic environment”. Therefore any marine protection measures aimed at addressing the impacts of fishing on the marine environment do not generate liability for compensation under current law.

Marine reserves

The Marine Reserve Act is silent on the issue of compensation. However, a marine reserve cannot be created if it would “interfere unduly with commercial fishing” or “interfere unduly with” or “adversely affect” existing recreational fishing (see spotlight above for court interpretation of these tests).⁵⁴ On that basis, it has been a long established government practice not to offer compensation on the establishment of marine reserves.

Mātaītai reserves

Mātaītai reserves cannot be established if they “unreasonably affect” the ability of the local community to harvest fish non-commercially and “prevent” commercial interests taking their quota or ACE entitlement. In the North Island there are additional tests. The reserve must not “unreasonably prevent” commercial fishers from taking non-quota species and non-commercial fishers harvesting fish.⁵⁵ In the South Island, the additional test is not “prevent” commercial fishers from taking non-quota species, with no similar protection for non-commercial fishers.⁵⁶

Wāhi tapu (under the MACA Act)

Conditions on wāhi tapu must not affect the exercise of fishing rights to the extent that they prevent fishers from taking their lawful entitlement in a quota management area or fisheries management area.⁵⁷

Aquaculture

A marine farm cannot be established if it would have “undue adverse effects” on recreational, customary or non-quota commercial fishing. If it would have “undue” adverse effects on commercial fishing for quota stocks, it cannot proceed, unless an aquaculture agreement or compensation declaration is reached. The methodology to determine compensation is set out in regulations.⁵⁸

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Spotlight on lack of flexibility in current MPAs

Marine reserves

The density of rock lobsters within the Cape Rodney-Okakari Point Marine Reserve increased for more than a decade after its establishment, in 1975, but then decreased after 1995, along with depletion of the broader fishery outside the reserve. Research undertaken on the movement of mature rock lobsters living in the reserve, in the early 2000s, found that they periodically moved offshore to feed on the sand flats located outside the reserve (which only extends 800 metres from the coast). This strongly indicated that animals were being harvested when they moved outside the reserve boundaries.¹ In short, the reserve was not large enough to protect an abundant population, and so the spillover effect of numerous adult rock lobsters moving across the reserve boundary and into the fishery was short-lived.

The Marine Reserves Act does not contain any provision to modify the boundaries of an existing marine reserve and so any extension would need to go through the fraught process required to create a new reserve. The Cape Rodney-Okakari Point Marine Reserve will be tripled in size under the Hauraki Gulf / Tīkapa Moana Marine Protection Bill. But this has necessitated special legislation, has yet to be promulgated, and it is now over 20 years since the problem was first identified.

Marine mammal sanctuaries

The Ōhau New Zealand Fur Seal Sanctuary was established off the Kaikōura coast, in August 2014, under the Kaikōura (Te Tai o Marokura) Marine Management Act 2014.² It was designed to protect the seal colony located at Ōhau Point from tourist disturbance. Less than two years after the seal sanctuary was created, in November 2016, the Kaikōura earthquake uplifted a 20 kilometre stretch of the Kaikōura coast by up to two metres. At Ōhau Point, the coastline was both uplifted and buried by large landslides which destroyed important habitat features including caves. In addition, State Highway 1 was rebuilt closer to the sea, which decreased the width of fur seal habitat on the Point by two-thirds.³

Fur seals now breed along much longer stretches of the Kaikōura coastline, and most breeding occurs outside the sanctuary. This indicates a need to extend the sanctuary boundaries.⁴ The Kaikōura special legislation provides for sanctuaries to be varied but only if “the variation has no more than a minor effect or corrects errors or makes minor technical changes”.⁵ Under the Marine Mammals Protection Act,

varying a marine mammal sanctuary requires the same process as creating an entirely new one.⁶ Hopefully this issue can be addressed as part of the ten year Ministerial review, provided for under the Kaikōura statute, which is currently underway.

6.3 Use collaborative processes

“A bottom up approach is the best from a Treaty point of view”.

There was strong support, amongst interviewees, for the use of collaborative processes to develop MPA proposals. The Fiordland Guardians and Te Korowai process in Kaikōura were both identified as good models to build on. Such bottom-up processes resonate more strongly with Māori, particularly if iwi or hapū and the use of customary tools are put at the heart the process.

“Te Korowai was the closest to best practice, putting hapū at the centre and core customary tools, and wrap around them a suite of other things – bag limits, marine reserves and sanctuaries – a package to create enhanced abundance and food quality.”

These positive views were supported by a study of 13 New Zealand MPA processes, which found that there were fewer oppositional submissions to MPAs when collaborative processes were used, and that such processes enabled collective learning and capacity building within the groups.⁷

We were told that any collaborative processes need to be well run and inclusive. If the ‘right people’ are not at the table agreements can subsequently be rolled back. Participants should be empowered to speak on behalf of their sectoral group. Such processes require strong, clear objectives and scope; well-constructed terms of reference; and a skilled facilitator to keep things on track. Collaboration also needs to be well-supported and based on access to high quality information. Some supported a stronger national framing for collaborative discussions, such as through a revamped MPA Policy, thereby providing a mix of top down and bottom up approaches.

“[We need to] find a way to build trust so the conversation can be frank, transparent and honest, a genuine conversation about trade-offs and understanding people’s livelihoods.”

6.5 Use a range of tools

There is currently a wide range of tools in the marine protection toolbox and a combination can be selected for a particular location and set of stressors. All tools have their own strengths and weaknesses. For example, in the Bay of Islands, hapū sought protection under the RMA due to the other available tools being either too permanent (marine reserves) or not enduring enough (Fisheries Act section 186A closures which require reinstatement every two years).¹¹

Hapū were “seeking an alternative process which secures longer-term (generational) protection without the perceived ceding of sovereignty/ rangatiratanga that they consider comes with Marine Reserves Act protection status”.¹² (Victoria Froude)

There have been calls for better integration of MPAs with Māori customary management tools.¹³ In the South Island, Ngāi Tahu has been proactive in reserving space for mātaihai reserves and taiāpure prior to marine reserves going ahead. On the Gisborne coast (as noted above), the Te Tapui Mātaihai O Hakihea Reserve was established on the northern boundary of the marine reserve with the intention it would benefit from reserve spillover. At Kaikōura, the collaborative planning process led by hapū resulted in the creation of two taiāpure, three mātaihai reserves, one marine reserve and two marine mammal sanctuaries which were designed to complement each other. These approaches could be built on.

It is also apparent that the tools under the Fisheries Act, including fisheries plans¹⁴ and sustainability measures,¹⁵ have not been fully utilised to protect the marine environment. In particular, there is considerable promise in using spatial fisheries tools to protect habitats of particular significance to fisheries management.¹⁶

There are also significant gaps in the toolbox. For a start, under the Marine Reserves Act, marine reserves cannot be created in the EEZ. Benthic protection areas only address impacts from certain types of fishing and not those from other activities such as seabed mining, renewable energy or aquaculture. The EEZ Act, which does manage these activities, lacks effective spatial protection tools and does not apply to fishing activity.¹⁷ Rāhui as reflected in a Fisheries Act section 186A or section 186B temporary closure, has a maximum length of two years (which is not usually long enough for marine life to recover), and it needs to be reapplied for at the end of each term. A longer-term rāhui tool could have

considerable utility. Tikanga and customary management measures could also be given statutory recognition.

“We need a wider range of types of protected areas. Specificity about objectives would be a huge benefit.”

The RMA provides a broad scope for marine protection in the territorial sea (it potentially applies to all activities) and has considerable flexibility (in that plans can be changed at any time and are required to be reviewed at least every 10 years). The Act tasks regional councils with “maintaining indigenous biodiversity” in the coastal marine area¹⁸ and the New Zealand Coastal Policy Statement provides further direction on avoiding adverse effects on it.¹⁹ This national direction could be further fleshed out, with a focus on marine protection. To the extent the RMA is replaced by new statutes such national direction could be brought over into the new regime.

The use of regional coastal plans to create MPAs has yet to be fully explored, although there are now precedents in the Bay of Plenty, Marlborough Sounds and Northland.²⁰ They have proved controversial because of impacts on fishing rights, and prospective changes to the RMA²¹ threaten to weaken this innovative approach, which is usefully filling gaps in the MPA arsenal (see spotlight).

Spotlight on proposed changes to fishing rules in the RMA

The Court of Appeal has confirmed that regional councils can control fishing activity for RMA purposes including for maintaining indigenous marine biodiversity.²² However, the government currently proposes to amend the RMA to restrict the circumstances in which such powers can be exercised, under the Resource Management (Consenting and Other System Changes) Amendment Bill 2024. Under these amendments, any rules that control fishing need to be included in the notified plan (and cannot be introduced later via submission). In addition, any proposal to include such rules in a plan needs to include an assessment of the impact on fishing and such assessment needs to be given to the Director-General of the Ministry for Primary Industries for concurrence to ensure the assessment has given appropriate consideration to fishing impacts, and provides clear and accurate information.

We heard divergent views on the value of creating MPAs in regional coastal plans, with the process being seen by some as expensive and

“If the quota management system is working well it should be dealing with the fishing side of the coin.”

It also needs to be acknowledged that even well-managed fisheries fundamentally impact the structure of fish stocks, through intentionally fishing down larger fish, and increasing the proportion of younger year classes. Single stock-focused management also alters the relationship between species at different trophic levels. This was evident in our Otago case study where we found that, although the overall fish biomass in the trawl fishery had increased and was generally stable over time, the average trophic level had decreased. In particular, there was a reduction in fish occupying the mid trophic level (such as jack mackerels and red cod),²⁹ and this had in turn reduced the food supply for threatened species such as the hoiho (yellow-eyed penguin)³⁰ and Hector’s dolphin.³¹ MPAs may be able to assist with mitigating such effects.

It is important that MPAs and fisheries management measures are designed in tandem so they support each other. This could be achieved through wrapping MPA design within a broader MSP process which also considers place-based fisheries issues. The development of a regional fisheries plan (such as that for the Hauraki Gulf) can then aid implementation of the fisheries elements of the marine spatial plan.



Rāhui and temporary closure under the Fisheries Act on the Taranaki coast

6.8 Depoliticise the process

“You can spend years to get to the end of the process, and it’s the decision-maker of the day that decides whether to go forward, despite efforts and conversations along the way.”

Many interviewees highlighted problems with the current highly politicised nature of marine protection, where good work is put into process and concerted efforts made to broker agreements between the various parties, for it all to be undermined at the final hurdle when reaching the political arena and Ministerial decision-making. In addition, decisions in the courts can be changed by statute, as is being proposed for the *Motiti* Court of Appeal decision.³²

“Ideally you want to take as much of the call [on marine protection] from the hands of government as possible as there are risks for everyone if government makes the call.”

Currently the Minister of Conservation (with the concurrence of the Ministers of Fisheries and Transport) makes the call on marine reserves, and the Minister for Oceans and Fisheries makes the call on fisheries measures. Protections under the RMA are initially determined by regional councils, but finally on their merits by the Environment Court (if appealed), necessitating an expensive legal process. Special legislation, which has been utilised in several marine protection cases as noted above, ultimately requires approval by Cabinet and majority support in Parliament.

The provision of a stronger statutory decision-making framework for MPAs could help reduce politicisation, including clearly setting out MPA objectives, design principles and criteria for tool selection. Scrutiny of proposals by an independent panel could also be valuable, similar to the process for water conservation orders under the RMA, where a special tribunal (and in some cases also the Environment Court) considers the application and makes a recommendation to the Minister for the Environment for final approval.³³

“Depoliticising the process would be helpful, maybe having the Minister sign off, but recommended by an expert tribunal or panel.”

Endnotes

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“The [MPA] Policy has made an important contribution; however, the benefits of the Policy have been limited by its lack of statutory backing, processes have been prolonged, and many opportunities for improvement have been identified during its development and implementation.”²

On the other hand, including MPA reform within broader legislation such as an Oceans Act could help better connect MPA efforts into a broader oceans management frame. It could be linked with statutory provision for place-based MSP, and an integrated national oceans strategy which could provide greater certainty for marine users. Many (but certainly not all) of our interviewees expressed support for integrating MPA identification into broader oceans planning efforts. However, while providing greater integration, this risks diluting a focus on marine protection and could take successive terms of government to achieve.

At the same time as undertaking MPA reform (whatever approach is taken), the Fisheries Act, RMA and EEZ Act could be strengthened to foster the use of their spatial protection tools. Some of this could be achieved through guidance, technical support and encouraging best practice. But in other areas legislative change may be required. For example, it could be helpful for spatial protection to be more explicitly linked to regional fisheries plans under the Fisheries Act, and to the protection of habitats of particular significance to fisheries. Customary management tools could be strengthened, including by providing for a longer-term rāhui-based tool.

National direction on MPAs could be promulgated under the RMA (or its successor), and provide a stronger framework for the utilisation of marine

spatial protection by regional councils. The EEZ Act could include specific provision for the development of national direction on spatial protection and a new targeted tool for this purpose (which is notably absent). Both Acts could provide a more explicit framework for the identification and implementation of environmental limits within the marine area, which in turn could drive spatial protection.

On balance we favour developing a new targeted piece of MPA legislation which would have clear objectives, and provide an updated set of tools and processes for marine protection. It could be linked to a broader Oceans Act, as well as be connected to strengthened fisheries, RMA and EEZ management regimes. It could be supported by updated MPA Policy, and a focused MPA Action Plan, both which could be given legislative teeth.

7.2 Build on key design principles

“If user and broader political support for [marine] reserves is to be secured ... far more attention will be required for clearer benefit or outcome measures, timelines, tools for implementation, and possible contingent adjustments, along with greater assessment of current and future cost/benefit trade-offs to users and communities.”³ (Gary Libecap et al)

Macpherson et al (2023) highlight the importance of “biocultural and flexible marine protection regimes that center Māori authority and allow for balanced and reciprocal protection and use of marine areas”.

From the above analysis, it is possible to distil a number of key design principles to underpin the more detailed design of any new MPA legislation. We set these out below, not to imply that these are definitive in any sense, but primarily to provoke discussion around them.

- (1) Provide a clear overall purpose for marine protection
 - a. Prime focus on protection of indigenous marine biodiversity
 - b. Protecting a range of marine communities, habitats and ecosystems
 - c. Supporting climate mitigation, climate adaptation and ecosystem services



Urupukapuka Island in the Bay of Islands which is an area that might benefit from a collaborative marine planning process given the proliferation of urchin barrens there

- a. Provide for regular reviews of MPAs including the ability to adjust boundaries, location and rules
 - b. Provide for future MPA planning and enable gaps in the MPA network to be filled
- (8) Ensure effective and active management:
- a. Provide clear management objectives for each MPA
 - b. Support co-management with iwi/hapū and community
 - c. Provide for active restoration activities
 - d. Ensure regular monitoring and public reporting
 - e. Ensure effective enforcement (cross agency)
 - f. Provide iwi, hapū and community rangers with enforcement powers
 - g. Provide a reasonable degree of preference for mana whenua in the issue of concessions or permits within MPAs
- (9) Ensure adequate resourcing:
- a. Provide a clear budget line for MPA establishment and operation
 - b. Ensure commercial users of MPAs contribute to resourcing (such as through concession fees)
 - c. Consider other funding measures (eg levies on marine users)



Water-borne transport to Resolution Bay cabins, Endeavour Inlet, Marlborough Sounds

Spotlight on Canadian Indigenous Protected and Conserved Areas

Canada has been at the forefront of recognising the role of Indigenous peoples in protected areas through supporting Indigenous Protected and Conserved Areas (IPCA).⁴ The approach is based on three tenets: (a) that protected areas can be indigenous led; (b) they represent a long-term commitment to conservation; and (c) they can be utilised to “elevate Indigenous rights and responsibilities.”⁵ In the marine space, IPCAs are seen as contributing to both “reconciliation and ocean conservation goals”.⁶

The Assembly of First Nations has provided a series of recommendations for how the Federal Government can better support the establishment of marine IPCAs including (amongst many other things):⁷

- Creating a ‘First Nations Nature Table’ (a technical body) to work with agencies to jointly address how IPCAs can help the country meet its international conservation commitments
- Requiring oceans and fisheries agencies to participate in collaborative governance initiatives with First Nations to support the planning, establishment and management of marine IPCAs
- Conducting pilot studies to learn from and further develop the government’s support for IPCAs
- Adopting an ‘Ethical Space’ approach, when engaging with First Nations, to create open dialogue that can support meaningful, respectful and cross-cultural discussion
- Ensuring cultural objectives are included alongside ecological ones in establishing IPCAs
- Establishing a marine IPCA Establishment Fund and Permanence Fund to support IPCA creation and long-term implementation
- Modifying existing legislation to create designations that provide more flexibility for co-designation, enable joint ‘decision-making tables’ and recognise and value Indigenous laws and authorities
- Enabling First Nations to collect user fees and permits in IPCAs.

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New Zealand is now far behind international best practice in MPA legislation and practice. The country is also far from meeting its international obligations. At the same time, the degradation of our marine environments is escalating. The current MPA system has long not been fit-for purpose and there is strong consensus around the need for change.

In this report we have identified tricky areas that will need to be negotiated to successfully effect MPA reform. But there are many areas on which there is broad consensus, and these can be fruitfully built on. It is also clear, overall, that the greatest progress on MPAs has been made through collaborative processes and New Zealand has rich experience in this area to build on.

There is no time to be wasted if we are to retain our unique indigenous marine biodiversity and rebuild healthy marine systems. While progressing MPA legislative reform, which we consider vital, we need to simply get on with the job. For this reason, we have recommended establishing further collaborative marine planning processes without delay.



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